

COMMITTEE ON GOVERNMENT
SENATE AMENDMENTS TO S.B. 1566
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 9, chapter 4, article 8, Arizona Revised Statutes,
3 is amended by adding section 9-500.54, to read:

4 9-500.54. Malicious delay; attorney general; violation; civil
5 penalty; definitions

6 A. NOTWITHSTANDING ANY OTHER LAW, A CITY OR TOWN IN THIS STATE MAY
7 NOT MALICIOUSLY DELAY [A RESPONSE TO A LICENSE, APPROVAL OR PERMIT OR ANY
8 SIMILAR APPLICATION OR REQUEST][ADOPTED LICENSING TIME FRAMES PURSUANT TO
9 SECTION 9-835 FOR SINGLE-FAMILY RESIDENTIAL CONSTRUCTION OR A RESPONSE TO
10 AN APPLICATION FOR SINGLE-FAMILY RESIDENTIAL CONSTRUCTION].

11 B. THE ATTORNEY GENERAL[, BASED ON A WRITTEN COMPLAINT BY A
12 PROPERTY OWNER WITH AN APPLICATION BEFORE A CITY OR TOWN,] MAY ENFORCE
13 THIS SECTION.

14 C. [FOLLOWING AN INVESTIGATION AND FINDINGS BY THE ATTORNEY
15 GENERAL,] A CITY OR TOWN IN THIS STATE THAT [VIOLATES][IS FOUND TO HAVE
16 VIOLATED] THIS SECTION [BY CLEAR AND CONVINCING EVIDENCE] IS SUBJECT TO A
17 CIVIL PENALTY OF \$5,000 PER VIOLATION [REGARDLESS OF THE DURATION OF THE
18 DELAY].

19 D. THIS SECTION DOES NOT MODIFY THE AUTHORITY OF A BUILDING CODE
20 OFFICIAL TO WITHHOLD A CERTIFICATE OF OCCUPANCY IN ACCORDANCE WITH A
21 CITY'S OR TOWN'S ADOPTED CODES AND ORDINANCES.]

22 [D.] [E.] FOR THE PURPOSES OF THIS SECTION[;][:]

23 1. "APPLICATION" MEANS A SITE PLAN, DEVELOPMENT PLAN, LAND
24 DIVISION, LOT LINE ADJUSTMENT, LOT TIE, PRELIMINARY PLAT, FINAL PLAT, PLAT
25 AMENDMENT OR BUILDING PERMIT FOR SINGLE-FAMILY RESIDENTIAL CONSTRUCTION.

26 2. "MALICIOUS":

27 [1.] [(a)] MEANS ACTING [IN BAD FAITH OR WITH SPECIFIC INTENT TO
28 OBSTRUCT APPROVAL OF A LICENSE, APPROVAL OR PERMIT OR ANY SIMILAR
29 APPLICATION OR REQUEST BY IMPOSING REQUIREMENTS NOT SPECIFICALLY

1 ~~AUTHORIZED BY CODE, ORDINANCE OR STANDARD OR ENGAGING IN SELECTIVE~~
2 ~~ENFORCEMENT, REPEATED UNEXPLAINED DELAYS OR ACTIONS TAKEN WITHOUT A~~
3 ~~LEGITIMATE HEALTH, SAFETY OR PLANNING CONCERN][WITH SPECIFIC INTENT TO~~
4 ~~OBSTRUCT APPROVAL OF AN APPLICATION BY IMPOSING REQUIREMENTS NOT~~
5 ~~SPECIFICALLY AUTHORIZED BY CODE, ORDINANCE, STANDARD OR OTHER LEGAL~~
6 ~~REQUIREMENTS, REPEATED UNEXPLAINED DELAYS OF MORE THAN TWICE THE CITY'S OR~~
7 ~~TOWN'S ADOPTED LICENSING TIME FRAME PURSUANT TO SECTION 9-835 FOR~~
8 ~~SINGLE-FAMILY RESIDENTIAL CONSTRUCTION OR DELAYS RESULTING FROM OTHER~~
9 ~~PENDING APPLICATIONS BY THE SAME APPLICANT].~~

10 ~~[2.] [(b)] DOES NOT INCLUDE ANY DELAYS DUE TO RESOURCE~~
11 ~~CONSTRAINTS, [DELAYS CAUSED BY THE APPLICANT OR A THIRD PARTY.] GOOD FAITH~~
12 ~~ERRORS OR ENFORCEMENT OF [IDENTIFIED CODES,] [ADOPTED TECHNICAL CODES,~~
13 ~~INCLUDING FIRE, BUILDING, TRANSPORTATION AND TRAFFIC, UTILITIES FACILITIES~~
14 ~~AND PUBLIC NUISANCE CODES.] ORDINANCES OR STANDARDS.~~

15 Sec. 2. Title 11, chapter 2, article 4, Arizona Revised Statutes,
16 is amended by adding section 11-269.31, to read:

17 11-269.31. Malicious delay; attorney general; county
18 attorney; violation; civil penalty; definition

19 A. NOTWITHSTANDING ANY OTHER LAW, A COUNTY IN THIS STATE MAY NOT
20 MALICIOUSLY DELAY A RESPONSE TO A LICENSE, APPROVAL OR PERMIT OR ANY
21 SIMILAR APPLICATION OR REQUEST.

22 B. THE ATTORNEY GENERAL OR COUNTY ATTORNEY MAY ENFORCE THIS
23 SECTION.

24 C. A COUNTY IN THIS STATE THAT VIOLATES THIS SECTION IS SUBJECT TO
25 A CIVIL PENALTY OF \$5,000 PER VIOLATION.

26 D. FOR THE PURPOSES OF THIS SECTION, "MALICIOUS":

27 1. MEANS ACTING IN BAD FAITH OR WITH SPECIFIC INTENT TO OBSTRUCT
28 APPROVAL OF A LICENSE, APPROVAL OR PERMIT OR ANY SIMILAR APPLICATION OR
29 REQUEST BY IMPOSING REQUIREMENTS NOT SPECIFICALLY AUTHORIZED BY CODE,
30 ORDINANCE OR STANDARD OR ENGAGING IN SELECTIVE ENFORCEMENT, REPEATED
31 UNEXPLAINED DELAYS OR ACTIONS TAKEN WITHOUT A LEGITIMATE HEALTH, SAFETY OR
32 PLANNING CONCERN.

33 2. DOES NOT INCLUDE ANY DELAYS DUE TO RESOURCE CONSTRAINTS, GOOD
34 FAITH ERRORS OR ENFORCEMENT OF IDENTIFIED CODES, ORDINANCES OR STANDARDS.

35 Sec. 3. Title 41, chapter 4, article 1, Arizona Revised Statutes,
36 is amended by adding section 41-710.04, to read:

37 41-710.04. Malicious delay; attorney general; violation;
38 civil penalty; definition

39 A. NOTWITHSTANDING ANY OTHER LAW, THIS STATE OR AN AGENCY OF THIS
40 STATE MAY NOT MALICIOUSLY DELAY A RESPONSE TO A LICENSE, APPROVAL OR
41 PERMIT OR ANY SIMILAR APPLICATION OR REQUEST.

42 B. THE ATTORNEY GENERAL MAY ENFORCE THIS SECTION.

43 C. THIS STATE OR AN AGENCY OF THIS STATE THAT VIOLATES THIS SECTION
44 IS SUBJECT TO A CIVIL PENALTY OF \$5,000 PER VIOLATION.

45 D. FOR THE PURPOSES OF THIS SECTION, "MALICIOUS":

46 1. MEANS ACTING IN BAD FAITH OR WITH SPECIFIC INTENT TO OBSTRUCT
47 APPROVAL OF A LICENSE, APPROVAL OR PERMIT OR ANY SIMILAR APPLICATION OR

Senate Amendments to S.B. 1566

1 REQUEST BY IMPOSING REQUIREMENTS NOT SPECIFICALLY AUTHORIZED BY CODE,
2 ORDINANCE OR STANDARD OR ENGAGING IN SELECTIVE ENFORCEMENT, REPEATED
3 UNEXPLAINED DELAYS OR ACTIONS TAKEN WITHOUT A LEGITIMATE HEALTH, SAFETY OR
4 PLANNING CONCERN.

5 2. DOES NOT INCLUDE ANY DELAYS DUE TO RESOURCE CONSTRAINTS, GOOD
6 FAITH ERRORS OR ENFORCEMENT OF IDENTIFIED RULES OR STANDARDS.

7 Enroll and engross to conform

8 Amend title to conform

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